

CLAREMONT CITY CODE

Adopted: December 12, 1990

Published in 1990 by Order of the City Council



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P.O. Box 2235 Tallahassee, FL 32316

Supp. No. 22

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of the
CITY OF
CLAREMONT, NEW HAMPSHIRE

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Assistant Mayor

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William Greenrose
Wayne Hemingway
Christopher Irish
Nicholas Koloski
William Limoges
Andrew O'Hearne
City Councilors

Nancy Bates
City Manager

Vacant
City Solicitor

Gwendolyn Melcher
City Clerk

PREFACE

This Code constitutes a complete codification of the ordinances of the City of Claremont, New Hampshire of a general and permanent nature.

Source materials used in the preparation of the Code were the ordinances adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of any ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Numbering System

The numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two component parts separated by a dash, the figure before the dash referring to the chapter number and the figure after the dash referring to the position of the section within the chapter. Thus, the second section of Chapter 1 is numbered 1-2 and the first section of Chapter 4 is 4-1. Under this system, each section is identified with its chapter and at the same time new sections or even whole chapters can be inserted in their proper place simply by using the decimal system for amendments. By way of illustration: If new material consisting of one section that would logically come between sections 3-1 and 3-2 is desired to be added, such new section would be numbered 3-1.5. New chapters may be included in the same manner. If the new material is to be included between Chapters 12 and 13, it will be designated as Chapter 12.5. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division.

Indices

The indices have been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within each index which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication to which the attention of the user is especially directed is the looseleaf system of binding and supplemental servicing for the publication. With this system, the publication will be kept up-to-date periodically. Subsequent amendatory legislation will be properly edited and the appropriate page or pages affected will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Successfully keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised sheets are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Alyce A. Whitson, Supervising Editor, and Ron McLaughlin, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Bob Jackson, City Manager; Raymond Bernard, Director of Parks and Recreation; Louie C. Elliott, former City Attorney; Thomas Ford, Fire Chief; Edgar W. Lunderville, Deputy Police Chief; Anita C. Methot, Clerk of the City Council; Debora J. Matteau, Zoning Administrator; Doris Nelson, City Clerk; Lynne Patten, Acting Assessor; Jeannine Perry, Finance Director/City Auditor; Robert L. Rivard, Building Inspector/Code Enforcement Officer; John J. Yazinski, City Attorney, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

MUNICIPAL CODE CORPORATION
Tallahassee, Florida

ORDINANCE NO. 335

AN ORDINANCE ADOPTING AND ENACTING A NEW CODE FOR THE CITY OF CLAREMONT, NEW HAMPSHIRE; PROVIDING FOR THE REPEAL OF CERTAIN ORDINANCES NOT INCLUDED THEREIN; PROVIDING A PENALTY FOR THE VIOLATION THEREOF; PROVIDING FOR THE MANNER OF AMENDING SUCH CODE; AND PROVIDING WHEN SUCH CODE AND THIS ORDINANCE SHALL BECOME EFFECTIVE.

THE CITY OF CLAREMONT ORDAINS:

Section 1. The Code entitled "Claremont City Code," published by Municipal Code Corporation consisting of chapters 1 through 22, each inclusive, is adopted.

Section 2. All ordinances of a general and permanent nature enacted on or before November 8, 1989, and not included in the Code or recognized and continued in force by reference therein, are repealed.

Section 3. The repeal provided for in section 2 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that is repealed by this ordinance.

Section 4. Unless another penalty is expressly provided, every person convicted of a violation of any provision of the Code or any ordinance, rule or regulation adopted or issued in pursuance thereof shall be punished by a fine of not more than one thousand dollars (\$1,000.00). Each act of violation and each day upon which any such violation shall occur shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any Code section whether or not such penalty is re-enacted in the amendatory ordinance. In addition to the penalty prescribed above, the city may pursue other remedies such as abatement of nuisances, injunctive relief, and revocation of licenses or permits.

Section 5. Additions or amendments to the Code, when passed in the form as to indicate the intention of the City Council to make the same a part of the Code, shall be deemed to be incor-

porated in the Code, so that reference to the Code includes the additions and amendments.

Section 6. Ordinances adopted after November 8, 1989, that amend or refer to ordinances that have been codified in the Code shall be construed as if they amend or refer to like provisions of the Code.

Section 7. This ordinance shall become effective [December 12, 1990].

Passed and adopted by the [city council] this 12th day of December, 1990.

/s/ Carol A. Calkins
Mayor

/s/ Anita C. Methot
Clerk

Claremont City Councilors:

/s/ Carol A. Calkins

/s/ John A. Middleton

/s/ G.T. Caccavaro, Jr.

/s/ Richard H. Moody

/s/ John Bennett

/s/ Kurt A. Normandin

/s/ Raymond Gagnon

/s/ Robert K. Walsh

/s/ William E. Wallenius

Certificate of Adoption

I hereby certify that the foregoing is a true copy of the ordinance passed at the regular meeting of the city council of the City of Claremont held on the 12th day of December, 1990.

/s/ Anita C. Methot

Deputy City Clerk

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(This checklist will be updated with the
printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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